



Procedure No: EXP202406716 (PS/00356/2024)

## RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

### BACKGROUND

FIRST: On 22/04/24, Ms. A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity DIGITAL PHOTO IMAGE, S.A. with NIF: A60984259 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant states that she does not wish to continue receiving emails from this company. In their emails, they state "...you can exercise the rights of access, rectification, cancellation... after accessing [www.nikonistas.com](http://www.nikonistas.com) or the contact form..." but she has written 3 times to the contact form and has not received a response. She has also written directly to the contact email listed in the privacy area, but has not received any response. There is no contact phone number.

Along with the complaint, the following documentation is attached:

- Dated 30/01/24, a copy of the email sent from the address [no-reply@nikonistas.com](mailto:no-reply@nikonistas.com) to the address \*\*\*EMAIL.1, with the subject: "Nikonistas, Support inquiry sent" and the following message:

- o "Thank you very much for contacting us. Regarding your inquiry, one of our support agents will send you a response with the appropriate information as soon as possible. Name and surname: A.A.A.

- o Email: \*\*\*EMAIL.1. Description of the inquiry: I request to unsubscribe from Nikonistas Club and please stop sending me emails. Thank you!"

- Dated 14/02/24, a copy of the email sent from the address [no-reply@nikonistas.com](mailto:no-reply@nikonistas.com) to the email address \*\*\*EMAIL.1, with the subject: "Nikonistas, Support inquiry sent" and the following message:

- o "Thank you very much for contacting us. Regarding your inquiry, one of our support agents will send you a response with the appropriate information as soon as possible. Name and surname: A.A.A.

- o Email: \*\*\*EMAIL.1. Description of the inquiry: Good morning. 15 days ago I requested my unsubscribe from the club and that all my data be deleted, but I am still receiving your emails. PLEASE, I do not want to continue receiving your promotional emails to my address; they are very numerous. If you continue to ignore my request, I will have to report you for non-compliance with the European Data Protection Regulation."

- Dated 21/02/24, a copy of the email sent from the address [no-reply@nikonistas.com](mailto:no-reply@nikonistas.com) to the email address \*\*\*EMAIL.1, with the subject: "Nikonistas, Support inquiry sent" and the following message:

- o "Thank you very much for contacting us. Regarding your inquiry, one of our support agents will send you a response with the appropriate information as soon as possible. Name and surname: A.A.A.

- o Email: \*\*\*EMAIL.1. Description of the inquiry: PLEASE, this is the 3rd time I am writing. I request that you delete my data from your records and STOP SENDING ME MESSAGES TO MY EMAIL. If you do not do so, I will file a complaint for non-compliance with the Data Protection Law."

- Dated 29/02/24, a copy of the email sent from the address [no-reply@nikonistas.com](mailto:no-reply@nikonistas.com) to the address \*\*\*EMAIL.1 with the subject: "Precision technology that takes your game to the next level with Nikon COOLSHOT rangefinders" and containing the following promotional message:

- o "A.A.A.: Nikon laser rangefinders stand out for their cutting-edge laser range technology, which guarantees millimeter precision in distance measurement."

- Dated 05/03/24, a copy of the email sent from the address \*\*\*EMAIL.1 to the address [club@nikonistas.com](mailto:club@nikonistas.com), with the subject: A/A DIGITAL PHOTO IMAGE / About personal data / Privacy and containing the following message:

- o "Good afternoon: I have been receiving your emails for some time because I once had a Nikon camera, but I no longer want to receive them and I want you to delete my data from your records. According to what is stated at the bottom of your newsletters: 'You can exercise the rights of access, rectification, cancellation, opposition, deletion, limitation, and portability by modifying the personal data in 'edit my profile', after accessing [www.nikonistas.com](http://www.nikonistas.com) or the contact form.' Well, this is not true. I have not been able to exercise my rights to cancel my data. I have already sent 3 messages to the

contact form and not only have I not received a response, but I continue to receive your newsletters very often to my email. Searching on your website, I found this other address and that is why I am writing to you through this means. Please stop sending me emails and delete my data.”

- Dated 14/03/24, a copy of the email sent from the address no-reply@nikonistas.com to the address \*\*\*EMAIL.1 with the subject: “Renew your Nikon Z 9 thanks to the latest updates” and containing the following promotional message:

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“A.A.A., the new update will allow for additional improvements in the operation of the Nikon Z 9, such as greater visibility and an increase in the number of functions that can be assigned to custom controls...”

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Dated 25/03/24, a copy of the email sent from the address no-reply@nikonistas.com to the address \*\*\*EMAIL.1 with the Subject: “Exploring the best binoculars for your outdoor adventures” containing the following promotional message:

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“Nikon Sport Optics stands out as one of the leading manufacturers of binoculars, specializing in the creation of all-terrain binoculars. A.A.A., whether you are an occasional outdoor enthusiast or a dedicated hobbyist, having the best Nikon binoculars is essential for your specific activity. Today we propose four of the best Nikon binoculars, ...”

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Dated 27/03/24, a copy of the email sent from the address no-reply@nikonistas.com to the address \*\*\*EMAIL.1 with the Subject: “Nikon AF System with Eye Detection and Tracking for Animals” containing the following promotional message:

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A.A.A., photographing our pets can be fun and easy if they are docile and stay still. However, for more energetic pets or animals, it can be an odyssey. Nikon Z cameras...

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Dated 05/04/24, a copy of the email sent from the address no-reply@nikonistas.com to the address \*\*\*EMAIL.1 with the Subject: “Nikon Z 6II Experts Talks | We talk with B.B.B., travel, events, gastronomy photographer, etc.” containing the following message:

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In this online talk, B.B.B. will mainly share his experience with the Nikon Z 6II and other Nikon Z cameras he has worked with, such as the Z fc and the Z f, among others. We will discuss travel photography, events, gastronomy, etc., as well as his works and projects; he will also talk about the optics he works with, their advantages, and their quality.

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In each promotional email received, there is the following message:

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You can exercise your rights of access, rectification, cancellation, opposition, deletion, limitation, and portability by modifying your personal data in 'edit my profile', after accessing www.nikonistas.com or the contact form.

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Do not reply to this email; this sender does not accept incoming mail, so you will not receive a response.

SECOND: Dated 03/05/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to inform, within one month, about what was stated in the complaint.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), by electronic notification, with the following result: “expired due to lapse, as the deadline for appearance was exceeded, as of 14/05/24 00:00,” as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, in accordance with the provisions of Article 41.5 of the LPACAP, the complaint was resent to the respondent on 14/05/24, with access to the content of the notification occurring on 14/05/24 by C.C.C., as recorded in the file.

There is no record of any response to the request for information at this Agency.

THIRD: Dated 03/05/24, this Agency accessed and reviewed the information appearing in the “Privacy Policy” of the website [www.nikonistas.com](https://www.nikonistas.com) (<https://www.nikonistas.com/digital/politica-privacidad.php>), where, among other issues, it is stated:

“DIGITAL PHOTO IMAGE, S.A. –  
PRIVACY NOTICE (...)

YOUR RIGHTS: You can contact us to exercise any of the rights granted to you under applicable data protection laws, (...) and (6) the right to object to processing, and, where we have requested your consent, withdraw this consent (...).

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6) The right to object: You also have the right to object to the processing of your personal data, which means you can request that we do not process your personal data. At any time and free of charge, you can object to the processing of your data for direct marketing purposes, in cases where they are processed for that purpose, including profiling for the purpose of direct sales. If you exercise this right, we will not process your personal data for such purposes.

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CONTACT DETAILS FOR YOUR PRIVACY INQUIRIES: DIGITAL PHOTO IMAGE, S.A. Ciencias 81, Nave 8 Polígono industrial Pedrosa, (08908) L’Hospitalet de Llobregat (Barcelona)  
[club@nikonistas.com](mailto:club@nikonistas.com).

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This site is managed by Digital Photo Image, S.A. (Grupo Finicon) with NIF: ESA-60984259 and Mercantile Registry of Barcelona, Volume 28,661, Page 9, Sheet B141.711.

FOURTH: On 22/07/24, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD.

FIFTH: On 13/09/24, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 21.1 of the LSSI, classified as minor in Article 38.4.d) of the aforementioned regulation. In the opening agreement, it was determined that the sanction that could correspond, taking into account the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 20,000 (twenty thousand euros). The notification of the initiation of the file was carried out in accordance with the rules established in the LPACAP, through electronic notification, with the following result, with access to the content of the notification occurring on 13/09/24, as recorded in the file.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file in this Agency. Article 64.2.f) of the LPACAP -a provision of which the complained party was informed in the opening agreement of the procedure- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based,

the infringement of the LSSI attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations against the initiation agreement of the file and in accordance with what is established in Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

#### PROVEN FACTS

First: From the documentation provided by the complaining party, it is evident that the entity Digital Photo Image S.A. is responsible for the processing of personal data in relation to the electronic communications sent by the platform "Nikonistas" through the email [no-reply@nikonistas.com](mailto:no-reply@nikonistas.com).

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Second: From the documentation provided by the claimant, it is noted that on 30/01/24 the claimant requested, via the contact form on the Nikonistas website ([www.nikonistas.com](http://www.nikonistas.com)), to cancel their membership in the club and to cease the sending of promotional emails, as evidenced by the communication received by the claimant from the address [no-reply@nikonistas.com](mailto:no-reply@nikonistas.com) with the automatic acknowledgment message.

Third: From the documentation provided by the claimant, it is noted that on 14/02/24 and 21/02/24 the claimant reiterated their request for cancellation and deletion of their personal data, indicating that they had not received any response to their previous request, and that they continued to receive promotional emails, as evidenced by the copy of the communication received from the address [no-reply@nikonistas.com](mailto:no-reply@nikonistas.com) with the same automatic acknowledgment message.

Fourth: From the documentation provided by the claimant, it is noted that they continued to receive electronic communications containing advertising content from the responding entity. The following emails are attached as evidence, sent from the address [no-reply@nikonistas.com](mailto:no-reply@nikonistas.com) to the claimant's email address on the days of 29/02/24; 14/03/24; 25/03/24; 27/03/24; and 05/04/24.

Fifth: From the documentation provided by the claimant, it is noted that they also attempted to exercise their rights to data cancellation by sending a direct email to the address [club@nikonistas.com](mailto:club@nikonistas.com) on 05/03/24, in which they reiterated their request for cancellation and the deletion of their personal data. A copy of the sent email is provided.

Sixth: All promotional emails sent by Digital Photo Image S.A. from the address [no-reply@nikonistas.com](mailto:no-reply@nikonistas.com) include the following standard message at the bottom: "You can exercise your rights of access, rectification, cancellation, opposition, deletion, limitation, and portability by modifying your personal data in 'edit my profile', after accessing [www.nikonistas.com](http://www.nikonistas.com) or the contact form. Do not reply to this email, this sender does not accept incoming mail, so you will not receive a response."

#### LEGAL GROUNDS

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Jurisdiction.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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The Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

## II

Summary of the events that occurred:

In the present case, the complainant alleges in their complaint that, despite having requested on several occasions the cessation of the sending of commercial emails, they did not receive a response to their requests and continued to receive promotional communications from the company. They state that they used the contact methods provided in the company's emails, as well as the contact form on its website, without receiving any response.

Along with their complaint, the complainant attached several emails sent to the respondent that documented their desire not to receive further commercial communications from the respondent entity. These emails, sent between January and April 2024, reflect repeated requests for cancellation and deletion of their data, without the respondent complying with these requests despite having responded to the complainant with an "acknowledgment of receipt" of having received them.

## III

Classification of the infringement committed by sending commercial communications without having been requested or expressly authorized.

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is qualified as an information society service and defined in its Annex as: "f) any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity."

The fact that the respondent sends advertising emails to the complainant that had not previously been requested or expressly authorized may constitute a violation of the provisions established in Article 21 of the LSSI, as it states:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not previously been requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those that were initially the subject of the contract with the client. In any case, the provider must offer the recipient the possibility to oppose the processing of their data for commercial purposes."

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promotional communications through a simple and free procedure, both at the time of data collection and in each of the commercial communications directed to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited.

## IV

Sanction

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

On the other hand, Article 40 of the LSSI establishes the criteria for the graduation of the amount of the sanctions: "The amount of the fines imposed will be graduated according to the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of the commission of infringements of the same nature, when declared by a firm resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of business affected by the committed infringement. g) Adherence to a code of conduct or a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, as established in Article 40 of the LSSI:

- The existence of intent (section a) since the complainant receives up to three requests for cancellation from the system from the claimant without complying with the request, as it is confirmed that they continue to send commercial communications after receiving the requests.

According to these criteria, it is deemed appropriate to impose a sanction of €20,000 (twenty thousand euros) for the infringement of Article 21.1 of the LSSI.

In accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been accredited, the Director of the Spanish Agency for Data Protection

RESOLVES:

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FIRST: TO IMPOSE on the entity DIGITAL PHOTO IMAGE, S.A. with NIF: A60984259, for the infringement of Article 21.1 of the LSSI, classified as minor in Article 38.4.d) of the aforementioned regulation, a fine of 20,000 euros (twenty thousand euros).

SECOND: TO NOTIFY this resolution to DIGITAL PHOTO IMAGE, S.A.

THIRD: To warn the sanctioned party that the imposed fine must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. or, otherwise, collection will proceed during the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law

29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

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They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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